

May 11, 2026 Truckee Probate Tentative Rulings

1. PR0000159 In Re Brookman, Audrey Joy Lewis

Order to Show Cause - Appearance required by Eileen Lewis to show cause as to why issue and/or claim terminating sanctions should not issue for her repeated failure to adhere to the Court's order as assertion in the two most recently filed declarations of the minor's guardian of the estate and as previously determined by the Court. The Court is in receipt of Ms. Lewis Declaration filed May 4, 2026 declaring she has provided the financial documentation necessary for completion of the Accounting. However, the declaration fails to state the date of such completion.

Ms. Lewis has previously been found to have mismanaged the minor's estate and breached her fiduciary duties to the minor, and, it now appears, she is continuing to act in a manner which results in sheer wasting of the minor's estate. The Court believes Ms. Lewis has intentionally thwarted this Court's orders and the guardian's efforts to adhere to Court orders and timelines which has resulted in serious delays in accountings being filed and an inability of the guardian to do her job. Moreover, Ms. Lewis' actions and inaction appear to have resulted in thousands of dollars in unnecessarily added expense to the minor's estate which the Court believes should be payable by Ms. Lewis. The Court is inclined to preclude Ms. Lewis from asserting any expenses still at issue due to her failure to timely provide information and documentation to the guardian and/or the guardian's agents are expenses payable by the minor's estate and, instead, order Ms. Lewis to reimburse the minor all expenses for which she has failed to provide clear documentation as requested by the guardian and ordered by the Court and all expenses related to her refusal to timely cooperate with the guardian's requests.

Second Accounting – Appearance required by the Guardian of the Estate of the Minor to update the Court on the status of the second accounting. At the time of the Guardian's last declaration filed on April 6, 2026, the Guardian had no estimate of when the second accounting would be completed. The Court requires an update.

2. PR0000750 In the Matter of Melilah A Schuch Living Trust

Mario Albert Hernandez' petition for preliminary distribution is DENIED in light of the Trustee's petition for final distribution having now been filed and set for June 22, 2026 at 1:30 p.m. in Department A.

3. PR0000917 In the Matter of Delio K Estevez

No appearances required. The Court is in receipt of the Declaration of Victoria M. Estevez and Amy V. Kaufman and has reviewed Petitioners' response to Order to Show Cause re: Deposit of Minor's Funds. Accordingly, the Court adopts the proposed order and sets an accounting hearing for July 13, 2026 at 1:30 p.m. in Dept. A. The first inventory and account is due by June 29, 2026.

4. PR0000991 In the Matter of Janis L Leyshock

This matter is before the Court on a Petition to administer decedent's estate. The Court is in receipt of proof of publication and signed duties. Bond is waived. No defects are noted. The proposed order is approved, and Letters shall issue upon presentment. Proposed Letters to be presented to the Court Clerk within one week from today. No appearances are required.

5. PR0000998 In the Matter of Seth Bartlett

The Spousal Property Petition is continued on the Court's own motion to June 8, 2026 at 1:30 p.m. in Dept. A. Petitioner must file a declaration which sets forth the "facts upon which the petitioner bases the allegation that all or a part of the estate of the deceased spouse is property passing to the surviving spouse," as required by Probate Code section 13651(a)(3). The Court also requires a copy of decedent's death certificate. The declaration and certificate shall be filed by June 1, 2026. No appearances required.